

S.R. Bommai v. Union of India

Citation: (1994) 3 SCC 1 | Court: Supreme Court | Year: 1994
Coram: 9-Judge Constitution Bench | Subject: Constitutional Law | Provisions: Articles 356, 74(2), 355

I. EXECUTIVE SUMMARY & CASE GLIMPSE

President’s Rule under Article 356 is subject to judicial review. Secularism and Federalism are essential pillars of the Basic Structure. The floor of the Legislative Assembly is the only constitutional forum to test majority, not the subjective opinion of the Governor.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 356, 74(2), 355. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Articles 356, 74(2), 355.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Presidential proclamation under Article 356 can be struck down if based on malafide or irrelevant grounds. Dissolution of state assemblies cannot occur until both Houses of Parliament approve the proclamation. Courts can restore dismissed state assemblies.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Ended the arbitrary invocation of Article 356 President’s Rule across Indian states.
- â€¢ Declared Secularism and Federalism as unalterable Basic Structure features.
- â€¢ Mandated floor test in the Assembly as the sole test of executive majority.